

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a substantially compliant response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall submit the order.

9. 9:00 AM CASE NUMBER: L25-05007
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELLY CLAWSON
*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND
ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address where Defendant was served with process and acknowledged service.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule,

then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,007.69, less any credits for payments received.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,007.69.

Plaintiff shall submit the order and proposed judgment.

10. 9:00 AM CASE NUMBER: L25-05481

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELLY CLAWSON

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed an amended motion, on 3/27/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where they were personally served with process.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$10,289.47, plus costs, less any credits for payments received.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,289.47.